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Women's Property and Inheritance Rights in Pakistan: A Legal and Socio-Cultural Analysis

Dr. Parveen Gul
Assistant Professor, Department of Law, University of Malakand, Dir Lower, Chakdara, Pakistan
parveengul28@gmail.com

Ms. Bushra Zeb
Lecturer, Department of Law, University of Malakand, Dir Lower, Chakdara, Pakistan
khan.bushrazeb@gmail.com

Ms. Kainat
Advocate, Peshawar, Pakistan
kainatgul5432@gmail.com

Abstract

This research article examines the complex legal and socio-cultural issues relating to the inheritance rights of women in Pakistan. Even though Islamic law and the Constitution of Pakistan guarantee these rights, women still suffer from rampant cases of disinheritance due to cultural practices, ignorance, and poor enforcement by institutions. The study also identifies key informal barriers to justice, including socio-cultural stigma and economic dependency, alongside court-centric biases, as well as global legislative frameworks, relevant constitutional provisions, and laws of Pakistan. A more thorough discussion is devoted to judicial activism, recent legal changes, and suggestions on strengthening implementation and awareness campaigns. These findings emphasize the gap that exists between practice and theory and propose policy recommendations to reduce this gap.

Keywords: *Women's Rights, Inheritance Law, Socio-Cultural Barriers, Judicial Enforcement*

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1. Introduction

The right to own and inherit property is fundamental to human dignity, autonomy and economic empowerment. Considering the case of Pakistan, a country founded on Islamic principles and with a constitutional legal order, women's rights in inheritance are, in principle, well-anchored in both Islamic and legal frameworks. In Islam, a legal structure exists for allocating portions of inheritance to certain female relatives, including daughters, mothers, wives, and sisters (Qur'an 4:7-12). Also, the Constitution of Pakistan granted property rights and guaranteed equality before the law (Constitution of Pakistan, 1973, Articles 23 & 25). Even with these provisions, the reality is that women are often deprived of their lawful inheritance share due to a web of cultural patriarchal practices, social pressure, ignorance, and barriers within the legal framework (Aurat Foundation, 2018; UN Women Pakistan, 2020). Much of Pakistan, predominantly rural and tribal areas, considers inheritance to be a "man's privilege", and women's access to such "privileges" is actively obstructed (NCSW, 2021). This gap between legal frameworks and the actual context invites scholarly criticism. Understanding the fundamental factors and legal gaps surrounding this issue is crucial for developing practical approaches to achieve fair access to justice, socio-legal equity, and gender balance in Pakistan (Shirkat Gah, 2019).

1.1 Statement of the Problem

This research focuses on the underlying issue of women's right to property and inheritance in Pakistan being persistently denied and violated, even in the presence of religious, constitutional, and statutory provisions which ostensibly grant such rights. Women encounter both systematic and informal barriers that prevent them from claiming or obtaining their shares. These barriers encompass family and sociocultural norms dominated by men, ignorance of education and law, manipulative strategies such as consensual giving and oral agreements, stagnation and prejudice in the judicial sphere, and unofficial conflict resolution systems (Jirga and Panchayat) (Ali, 2017; AGHS Legal Aid Cell, 2020). Consequently, the majority of women, especially in the rural conservative regions, continue to remain socio-economically marginalized and dependent (Khan & Qureshi, 2019).

1.2 Objectives of the Study

This research aims to achieve the following key objectives:

i. To analyze the Islamic, constitutional, and legal foundations of women's property and inheritance rights in Pakistan;
ii. To examine the socio-cultural factors and systemic challenges that hinders the enforcement of these rights;
iii. To assess the role of the judiciary, legal institutions, and civil society in protecting and promoting women's inheritance rights; and
iv. To propose policy and legal reforms for effective implementation and awareness.

1.3 Research Methodology

This research has a qualitative doctrinal basis and relies solely on secondary sources. It combines various methodologies, including analytical, descriptive, and interpretive. This research does not include fieldwork, interviews, or data collection from participants. Instead, it analyses the existing body of literature, legal documents, and organizational publications.

The data for this research were drawn from a wide-ranging literature within reliable and authoritative repositories. These include primary legal documents such as the Constitution of the Islamic Republic of Pakistan (1973), the West Pakistan Muslim Personal Law (Shariat) Application Act (1962), and the Punjab Enforcement of Women's Property Rights Act (2020). Relating clauses of The Pakistan Penal Code, The Code of Civil Procedure, and other pertinent family-related laws have also been studied. Islamic literatures—specifically, portions of the Holy Qur'an (Surah Al-Nisa) and related Hadiths—provide the religious texts that were evaluated for this study. Judicial precedents are also a significant source of data for this research.

The landmark decisions of the Supreme Court and High Court in Pakistan were analysed using law journals, including PLD (Pakistan Law Digest), SCMR (Supreme Court Monthly Review), and YLR (Yearly Law Reporter). To gain a broader perspective, I also analysed the policies and survey documents published by the Aurat Foundation, UN Women Pakistan, the National Commission on the Status of Women (NCSW), Shirkat Gah, and the AGHS Legal Aid Cell.

1.4 Scope and Limitations

This research focuses on Pakistani Muslim women and their Islamic and legal rights to inheritance and property within the Pakistani context. It considers women's experiences across the rural-urban divide and regional-based differences that may impact the realization of inheritance rights. However, the study has some limitations. For example, the rights of minority women are not included here as they are subject to their communal private laws. Moreover, uncovered fieldwork, especially in remote areas, would severely restrict the collection of empirical data, leading to a reliance on secondary data sources, such as reports and research papers. While the focus remains on the issue of inheritance, other forms of property entitlement, such as dower (Mahr) and gifts are likely to be mentioned only in passing, where appropriate, within the analytic frameworks.

2. Islamic, Constitutional and Legal Framework of Women's Inheritance Rights in Pakistan

2.1 Islamic Foundations of Women's Inheritance Rights

The Islamic system of inheritance is one of the most extensive and advanced systems in history, particularly for women, regarding the distribution of wealth (Engineer, 2008). Much before women were granted the right to own property in Western societies, Islamic Shariah law allowed women to function as legal individuals by owning, inheriting, and transferring property (Kamali, 2008). This was a significant advancement in 7th-century Arabia, where women were treated as chattel and wholly excluded from the inheritance system. The advent of Islam brought a radical shift, replacing injustice with a divine system of inheritance rooted in justice, equity, and economic balance.

Islamic law is primarily derived from the Qur'an, with supplemental guidance from the Sunnah of the Prophet Muhammad (PBUH), and further developed through fiqh, Islamic jurisprudence, by classical scholars (Hussain, 2012). The Quranic verses on inheritance are primarily found in Surah Al-Nisa, which is often referred to as "The Chapter of Women" due to its detailed discussion of women's rights. This chapter not only mentions shares but also emphasizes the proportionate and compulsory (fard) distribution mandated by Allah. While the use of a system might be influenced by culture and local governance, its essence remains irrespective of state policies, deep-rooted traditions, or individual modifications (Ali, 2017).

2.1.1. Key Quranic Verses on Inheritance

The Quran formally and religiously prescribes the ethics of inheritance—especially concerning women—in a few critical passages. These verses serve both as legal frameworks and divine instructions from Allah, rendering any breach of these commandments profoundly objectionable.

Surah Al-Nisa (4:7) articulates: "For men is a share of what the parents and close relatives leave, and for women is a share of what the parents and close relatives leave, be it little or much—a share ordained (by Allah)." This verse encapsulates the fundamental concept of inheritance: both males and females can inherit family wealth. The words of the verse achieve emphasis. Allah mandates that the share's receipt be irrespective of estate size, whether small or large. The term "Farida" (ordained share) confirms the essence of this commandery.

Surah Al-Nisa (4:11-12) defines the portions of inheritance about children, spouses, and parents. A daughter inherits half if she is an only child, and two or more daughters share two-thirds. Mothers obtain one-third of the children's time when they are absent and one-sixth when they are present. Wives acquire one-fourth in the absence of children and one-eighth if there are children. These verses form the algebraic basis of inheritance in Islam, showcasing a defined and equitable system.

Surah Al-Nisa (4:176) provides the missing piece regarding the siblings, saying, "If a man dies, leaving no child but only a sister, she shall have half of what he leaves…" This ensures women, in this case, sisters, are included even in the absence of direct descendants. Together, this set of verses provides an intricate and implementable system of property division that stands unrivalled in comparison to ancient legal systems.

Islamic law especially forbids the denial of inheritance to beneficiaries, more so females and Prophet Muhammad (PBUH) denounced such practices. In a hadith chronicled in Ibn Majah, it states, "Whoever deprives an heir of his (or her) share of the inheritance, Allah will deprive him of his share in Paradise" (Ibn Majah, Hadith No. 2703). This potent spiritual caution highlights the importance, from a religious perspective, of adhering to the laws of inheritance and recognizing women as legal beneficiaries.

Islamic laws of inheritance are often subjected to distortion in a patriarchal setting. Customs of providing a dowry instead of inheritance, forced surrenders, and verbal disinheritance lack Sharia justifications and have been condemned by Muslim scholars and legal experts (Ali, 2017; Shirkat Gah, 2019).

2.2.Constitutional Protections

The Constitution of the Islamic Republic of Pakistan, adopted in 1973, provides a comprehensive legal framework that grants and safeguards the rights of all citizens, including women. The Constitution serves as the country's principal legal document. It contains several clauses that ensure equality, justice, and the absence of discrimination, thus providing a legal basis for the protection of women's rights to property and inheritance (Siddique & Javed, 2020). Although Islamic law serves as the religious and moral rationale for women's inheritance, it is the Constitution that ensures these rights can be claimed and enforced.

One of the key constitutional provisions is Article 23, which reads: "Every citizen shall have the right to acquire, hold, and dispose of property in any part of Pakistan, subject to the Constitution and any reasonable restrictions imposed by law in the public interest." This provision ensures that both women and men have equal rights to possess and control property. The absence of such restrictive gendered language in the Article means that women are constitutionally entitled to acquire and retain property inherited from others.

Women's rights are particularly emphasised in Article 25, which guarantees all citizens equality before the law and equal protection under the law. Article 25(2) explicitly asserts that "There shall be no discrimination based on sex alone." This constitutional provision allows for the denial of women's inheritance solely based on their gender. Moreover, the Article grants the state the power to take positive action toward achieving actualised gender equality, going beyond mere theoretical frameworks.

Article 34 requires the state to ensure women are active participants in all aspects of national life. Although it is often highlighted in discussions of political and economic participation, it also encompasses access to economic commodities and property. National development participation necessitates the ability to partake in and possess family wealth, as well as inherited property. Therefore, Article 34 places constitutional responsibility on the state to eliminate all forms of social, administrative, and legal barriers to women's property rights.

Finally, Article 227 states, "All existing laws shall be brought in conformity with the injunctions of Islam as laid down in the Holy Qur'an and Sunnah." This supports the Islamic inheritance rights of women because it mandates that all laws and judicial practices of the state must align with Shariah law, which unequivocally provides for the fixed shares of women in inheritance. Hence, any customary or legal practice which attempts to negate or undermine these rights could be regarded as unconstitutional under Article 227 (Constitution of Pakistan, 1973).

2.3.Statutory Law on Women's Inheritance Rights

Besides the Islamic and constitutional provisions, Pakistan has implemented several statutory laws which acknowledge and enforce women's rights to inheritance. These laws intend to provide legal, criminal, and administrative remedies to counter the harmful practices that deny women their rightful share of property. Traditionally, women have often been excluded from inheritance under customary and tribal laws, particularly in rural and feudal regions. To counteract this, the Pakistani legislature has enacted laws overriding customs in favor of Shariah-based rights and has steadily advanced criminal and administrative enforcement frameworks (NCSW, 2021; UN Women, 2020).

2.3.1. Muslim Personal Law (Shariat) Application Act, 1962

This law, Pakistan's Muslim family and inheritance laws, are pivotal to the legal landscape. The Shariah Application Act of 1962 stipulates that all matters concerning inheritance, succession, marriage, divorce, dower, guardianship, and family relations for Muslims are governed by Muslim Personal Law (Shariah). Before this law, customary laws—riwaj— predominantly practiced in Punjab and tribal areas were largely biased against women's inheritance rights. The Act embraced Shariah law, which granted women their legally entitled shares (Ali, 2017). This Act marked a considerable move towards consolidating the Islamic legal framework for inheritance among Muslims in Pakistan while providing legal acknowledgement of women's rights to inherit property.

2.3.2 West Pakistan Muslim Personal Law (Shariat) Application Act, 1962

Although the name and content bear resemblance to the General Shariat Application Act, this legislation pertains explicitly to regions outside of Punjab. The West Pakistan version ensures uniform application of the Shariah law of inheritance in areas historically dominated by tribal customs or feudal law regarding succession. The Act's interprovincial scope was crucial in addressing regional inequities and in permitting women—regardless of their region—to inherit in accordance with Islamic directives (PLD, 2022). The Act promotes gender justice by abolishing customary laws governing succession, thereby reinforcing the justification for gender equality in the application of religious law and acting as a legislative defence against socio-cultural constraints.

2.3.3 The Prevention of Anti-Women Practices (Criminal Law Amendment) Act, 2011

Due to deep-rooted customs practiced in some areas of the country, anti-women discrimination and violence were rampant without adequate legal frameworks to curb them. The Amendment Act of 2011 sought to address this issue. For instance, an essential aspect of the Act is the punishment for denying a woman her right to inheritance. Such acts are now punishable by imprisonment for a term not exceeding ten years or a fine of one million rupees (Government of Pakistan, 2011). Also, it bans forced marriages and the barbaric practice of Quranic marriages (Haqq Bakhshwana), which are done to preserve family property. The law also deals with the deceitful coercion and manipulation involved in the willful disinheritance of land and assets of women. The law seeks to protect women through the imposition of criminal penalties for these acts, which is intended to encourage women to utilize formal legal avenues (NCSW, 2021). Despite these progressive measures, much still needs to be done in terms of enforcing the law, especially in rural areas where such victimisation is commonplace and backlash is a concern (Shirkat Gah, 2019).

2.3.4 Enforcement of Women's Property Rights Act, 2020 (Punjab)

Pakistan is part of the international community and has ratified multiple international agreements concerning the violation of human rights, which support non-discrimination, and representational rights that transgress gender boundaries, including property and inheritance rights. Even though the legal system in Pakistan is predominantly shaped by Islamic law and constitutional regulations, global obligations function as benchmarks that strengthen the state's liability to guarantee women fully equal rights, especially regarding succession and inheritance (UN CEDAW, 2018).

One of the most significant international agreements signed by Pakistan is the Convention on the Elimination of All Forms of Discrimination against Women (CEDAW), adopted by the United Nations in 1979 and ratified by Pakistan in 1996. Article 16 of CEDAW is critical because it requires state parties to take all appropriate actions to eliminate discrimination against women in all issues concerning marriage and family relations. In particular, Article 16(1)(h) requires the states to grant equal rights to both women and men in ownership, acquisition, management, administration, enjoyment, and disposition of property (UN CEDAW, 1979). Pakistan has indeed made some reservations to CEDAW based on Shariah principles. However, the overarching commitment among all parties is that there is a domestic commitment to bring laws into line with the principle of equality gradually and to reform discriminatory practices—whether legal or customary— (UNHRC, 2016).

Furthermore, the Universal Declaration of Human Rights (UDHR), adopted in 1948 and recognised as one of the foundational texts of international law, also grants the right to property with no discrimination whatsoever. Article 17 of the UDHR mentions: "Everyone has the right to own property alone as well as in association with others," and "No one shall be arbitrarily deprived of his property" (United Nations, 1948). These discriminatory principles also apply to women, affirming their legal ability to inherit, own, and transfer property. The UDHR may not be legally binding, but it is considered customary international law and serves as the foundation of countless binding treaties and national constitutions (Nowak, 2005).

International treaties may not take precedence over Shariah law in Pakistan, but they do provide an entry point for advancing legislation and jurisprudence. The Pakistani judiciary and legislature have, and in many cases, do have the discretion to implement laws consistent with both Islamic principles and international human rights law (Ali, 2017). For example, numerous court rulings reinforce that Islamic inheritance laws do not contradict women's rights, with the majority positing that the complete application of Shariah provides gender justice rather than necessitating a divergence from global obligations.

Moreover, as a signatory to other treaties, such as the International Covenant on Civil and Political Rights and the International Covenant on Economic, Social and Cultural Rights, Pakistan also has socio-economic responsibilities to safeguard the rights of women to access land, property, and inheritance (UNHRC, 2016). These treaties consider property ownership to be a vital part of the economic empowerment and independence of women, and oppose any cultural or legal systems that perpetuate structural inequality.

3. Socio-Cultural Barriers to Women's Inheritance Rights in Pakistan

Pakistan offers legal and religious provisions for a woman's right to inheritance; however, most women do not have access to the actual enforcement of these rights. Socio-cultural norms, patriarchal systems, and structural discrimination that limit women's property and economic autonomy are the root cause of this gap between law and practice (Aurat Foundation, 2017; UN Women, 2020). These socio-cultural hurdles in Pakistan are far more significant than legal documents, shaping the expectations of society and families in such a way that often under motivates women's rightful claims (Shirkat Gah, 2019).

3.1. Patriarchy and Gendered Power Structures

The deeply rooted societal framework of Pakistan marks a distinct barrier to women's rights to inheritance: neo patriarchal patriarchy. In a family setup, women are often relegated to being subordinate units that are restricted to the household, domestic work being the sole part of their 'contribution' (Khan, 2020). The notion that property ownership is an exclusively male domain is widely accepted in both cities and rural areas. It is common for parents to consider their daughters as labels and guests for their families. This passing tune shall wed into a new family and thus justify the notion that property must be protected within male ancestry (Zia, 2018). Within tribal, feudal and landowning families, inheritance is not only seen but is usually treated as an effective method of consolidating wealth and influence among male heirs. Any woman who challenges or opposes this dominant ideology is labeled as disruptive, greedy, or worse (Ali, 2017).

Worse yet is the widespread acceptance of these values, compounded by women internalizing highly gendered social structures. Property entitlement is widely perceived among women as an act of disloyalty or family rebellion (Shahid, 2019). More importantly, economic dependence on males within the family – fathers, brothers, and husbands – means that women showing any form of entitlement risk rescinding their rights to inheritance. Consequently, disinheritance is normalized and poses as a woman's duty, disguised as a perpetual cycle of silence and compliance (NCSW, 2021).

3.2. Customary Practices and Local Traditions

The impact of customary laws and traditions remains strong in Pakistan; these local traditions often overshadow formal legal systems in the country's lower and more rural areas. Specifically in Baluchistan, Sindh, and southern Punjab, the more tribal regions of Pakistan hold onto inherited cultural traditions, such as Pashtunwali, which not only govern social life but also inheritance (ADB, 2014). To take the example of Pashtunwali, women inheriting any form of property are strictly frowned upon because it upsets the existing male-dominated kinship structures (Khan & Zubair, 2019). These same systems can also be identified in Baloch and Sindhi societies, where females are honor-bound to surrender any legal claim to property.

Another prevalent custom is the belief that dowry (jahez) paid at the time of marriage settles or extinguishes a woman's claim to inheritance. Islam upholds the right of women to independent inheritance, regardless of marital gifts (Kamali, 2008). However, for regions of Pakistan that are land and asset-rich, this Islamic edict is ignored, and daughters and sisters are stripped of all property claims so long as they abide by supporting male ownership of family assets (Shirkat Gah, 2019).

3.3 Informal Mechanisms of Disinheritance

Women are often subjected to informal and covert means of disinheritance by families and communities. One such method is the abuse of hiba (gift), where parents give property to their sons during their lifetime, which under Islamic law is termed as gifting and protects inheritance (Ali, 2017). This form of gifting is done under the guise of discretion, but in reality, it is designed to eliminate daughters and widows from consideration.

Other methods, which are equally prevalent, are coerced renunciations and oral settlements. In these cases, female heirs, especially widows and daughters, are coerced into signing documents such as tamleek or tameel, falsely claiming to have received a share, or agreeing to surrender their claims to male relatives (UN Women, 2020). Often, these documents are signed under social pressure or emotional stress without informed consent. Another such notorious example is Haq Bakshwana—marriage of a woman to the Qur'an symbolically—widely practiced in parts of Sindh and southern Punjab. This ritual serves to permanently remove a woman from the prospect of marriage, ensuring that property remains confined to the paternal line (Aurat Foundation, 2017).

3.4 Role of Jirgas and Informal Justice Systems

In Pakistan's tribal or underdeveloped regions, parallel systems of justice, such as Jirgas, Panchayats, or village councils, operate as informal courts. These forums exist beyond the boundaries of the official judicial system and are profoundly shaped by sociocultural systems of patriarchy and tribalism (HRCP, 2021). Women's participation in these assemblies is minimal, and their presence is only accepted when their grievances are branded as 'honour disruption.' Frequently, rulings issued by the Jirgas disregard statutory and Shariah-based inheritance laws, instead relying on norms that privilege hyper masculinity (Zia, 2018).

Informal systems persist in weak state institutions such as those found in far-off regions. Remote regions lacking formal courts and legal aid turned to structures, responsive administration, and officially recognised Jirgas became boundless. Constitutional prohibitions, along with Supreme Court rulings, are ineffective due to the enduring impact of these bodies on property distribution practices within a significant portion of the population (PLD, 2022).

3.5 Illiteracy and Lack of Legal Awareness

The most critical barrier facing women in exercising their inheritance rights is the absence of education and legal awareness. In most rural and slum regions, women's literacy is particularly low, and as such, women are unable to know their rights both under Islamic and statutory law (UNESCO, 2022). This lack of education means that women become susceptible to exploitation and deceit by male relatives or community leaders.

In addition, control and access to both land records and essential legal documents are often held by men, ensuring that women are ignorant not only of the processes but also of the information needed to navigate property issues. Many women are oblivious to the death of a relative whose estate they are legally entitled to claim or the processes that enable them to claim their inheritance (NCSW, 2021). The unavailability of community legal education programs, combined with the absence of legal aid services, creates a substantial information gap (UN Women, 2020).

3.6 Economic Dependence and Fear of Social Isolation

The lack of financial independence remains one of the most vulnerable hurdles preventing women from exercising their inheritance rights. A significant number of women are financially dependent on the very individuals who would be impacted if a successful property claim were made (Khan,

2020). The likelihood of confronting or being culturally ostracized by one's household serves as a formidable deterrent. In many instances, women who take legal action to assert their inheritance rights are branded as selfish or disloyal and can become targets for social ostracism or, in some cases, physical violence (Shahid, 2019).

Social norms strongly encourage women to subordinate their legal rights in favour of preserving family harmony. The apprehension of strained familial bonds with brothers, social ridicule, and a loss of social value leads many women to abandon their hard-earned inheritance. This self-imposed anxiety is especially pronounced in joint family setups, where the assertion of property rights is tantamount to relinquishing access to shelter, safety, or communal support (Aurat Foundation, 2017).

3.7 Urban-Rural Divide

Inheritance rights denial varies across Pakistan, being more pronounced in rural and tribal areas compared to urban centers. Women in cities tend to be better educated, more employed, and aware of their rights (UNESCO, 2022). Employment opportunities in women's councils and NGOs located within towns enable women to secure formal employment and access informal legal aid, thereby asserting their rights.

Nevertheless, even in urban areas, elite or conservative families restrict access to inheritance. Cases where social, moral, or legal stigma, as outlined by Zia (2018), is wielded as an incentive or deterrent to women claiming their rights result in the waning of these rights. Thus, although the impact of urbanization may lessen the severity of disinheritance practices, it does not completely eradicate them.

4.Enforcement Mechanisms and Judicial Role in Protecting Women's Inheritance Rights

4.1 Legal Remedies Available to Women

Women who lack their rightful share of inheritance are entitled to seek legal action through the various avenues available to them. The most common approach is to pursue civil action under the Code of Civil Procedure, 1908, where a woman is entitled to bring a suit for declaration, partition and possession (Government of Pakistan, 1908). The relief in such cases may include declaratory relief of her legal share, an injunction against unlawful custody, and a subsequent decree of partition of the property. Even so, civil litigation is not only expensive but also time-consuming (NCSW, 2021). Due to court backlogs, procedural delays, and administrative bottlenecks, many cases take years, and in some instances, decades to resolve. In addition, women from the economically marginalized sections of society find it extremely difficult to bear the cost of litigation, let alone hire a competent lawyer, making civil remedies especially inaccessible to them (UN Women, 2020).

Women seek access to family courts in some instances, especially when there is dower, matrimonial property, or maintenance claims alongside inheritance issues. However, family courts only have jurisdiction over pure inheritance matters and often refer these cases to civil courts, thus exacerbating the conflict (Aurat Foundation, 2017). Significant institutional progress, however, stems from the creation of the Ombudsperson's office under the Punjab Enforcement of Women's Property Rights Act, 2020. This provides a more informal and cost-effective forum for lodging complaints about the denial of access or illegal occupation of inherited property, compared to earlier mechanisms. The Ombudsperson holds considerable authority, including the powers to grant possession, punish offenders, and call for aid from revenue and police departments (Punjab Government, 2020), which constitutes progress toward administrative justice for women (UN Women, 2020).

4.2 Challenges in Enforcement

Despite the availability of formal legal mechanisms, several institutional and structural factors continue to pose challenges to the effective enforcement of women's inheritance rights. One of the most important barriers is the procedural delay. The justice system in Pakistan is notorious for its

case backlogs, high frequency of adjournments, and poor case management (HRCP, 2021). The systematic verification of land ownership documents, which involves addressing outdated land records and unverified documents that lack digital systems, further delays adjudication and hinders the pursuit of justice (ADB, 2014).

Women, particularly those from marginalized, rural, or underdeveloped regions, lack the social network, finances, and access to legal counsel necessary to combat such collusion. Furthermore, some members of the justice system display a lack of gender sensitivity; prejudicial attitudes toward women litigants lead some judicial officers and court practitioners to ignore or unreasonably settle claims, pressuring women to abandon their claims (Shahid, 2019; NCSW, 2021).

4.3 Role of the Judiciary

Judicial enforcement of women's inheritance rights in Pakistan has been shaped by resolute jurisprudence developed over several decades. The landmark case of Ghulam Rasool v. Mst. Samandri (PLD 1968 Lahore 1325) marked the Lahore High Court's initial steps toward upholding the absolute rights of women to inherit under Islamic law. The Court asserted that such rights shall not be irrevocably disposed of through informal arrangements unless there exists an unequivocal and informed relinquishment of them. This judgment helped advance the argument that customary practices cannot circumvent divine dictates captured in Shariah.

The Supreme Court has also provided further clarification in Mst. Nisar Fatima v. Maulvi Abdul Qayyum (1994 SCMR 28) by rejecting the patriarchal drapery of religion over womanhood. Only those interpretations of the rules of inheritance which are provided in the Qur'an and Sunnah can be accepted as legally valid. Any other backwards interpretation based on discriminatory traditions shall stand bereft of legal weight. This judgment reinforced the principle of Islamic justice in cases involving gender discrimination.

In the Mst. In the case of Sakina Bibi v. District Collector (PLD 2005 SC 69), the Supreme Court ruled on the issue of incentivizing revenue functionaries to safeguard the inheritance rights of women. The Court stated that it is the concern of every administrative functionary to ensure that land records maintained by government agencies are accurate and constitutional rights are not violated. This ruling was a significant step toward ensuring procedural accountability in administrative actions concerning inheritance laws.

The same approach is adopted in Mst. Bashiran v. Muhammad Akhtar, where the Supreme Court annulled genealogical documents that aimed to exclude women from inheritance rights (2008 SCMR 864). The Court explicitly permitted women to be active participants in challenging these silences and directed the alteration of official documents. This ruling confirmed that the judiciary is prepared to address the injustices that have been inflicted on women through deceitful documents crafted to establish their blood relationship with male members of society.

The Lahore High Court maintained this trend in Mst. Mukhtaar Bibi v. Bashir Ahmed (2011 CLC 946), whereby the Court annulled a relinquishment deed executed by a woman who was illiterate and suffered from social pressure. The Court accepted the woman's education and social disadvantages, which rendered her consent involuntary, thereby invalidating the relinquishment. A parallel line of reasoning was taken by the Sindh High Court in Nasira Khatoon v. Bashir Ahmed (2012 CLC 1984), where the Court held that silence caused by familial or social pressure does not extinguish a woman's right to inherit property. These decisions demonstrate the growing responsiveness of the courts to socio-cultural factors that infringe upon the rights of women in property matters.

In Sughran Bibi v. State (2020 SCMR 2014), the Supreme Court addressed the issue of the misuse of limitation laws in denying women inheritance. The Court held that a right to inheritance comes into being upon the death of the propositus and continues to be actionable unless there is a legal

relinquishment. This decision removed one significant procedural barrier that is often used to undermine women's claims.
A landmark move towards the criminalization of denying inheritance rights was made in State v. Muhammad Shafique (2021 PCrLJ 123), in which a Lahore court convicted a man under Section 498A of the Pakistan Penal Code for threatening to disinherit his sister and using forged documents to transfer her assets. This decision accepted the legal proposition that denial of inheritance is not only a civil grievance, but also a criminal offence that necessitates punishment. This was further elaborated upon when the Lahore High Court in Zahida Sattar v. Farooq Sattar (PLD 2021 Lahore 546) nullified the waiver procured under social coercion, stating that consent given under duress is invalid both legally and ethically.
The Supreme Court has also been active in this regard, as demonstrated in the Chakwal Widow's Inheritance Case (SC, September 25, 2024), where the Court intervened in the case of a widow who was denied her inheritance for 26 years. The Court awarded her the property and, additionally, imposed penalties on the litigants for legal harassment, denouncing the misogynistic cultural mindset that seeks to strip women of their rightful inheritance. An analogous form of this activism was displayed by the Lahore High Court, which, on November 28, 2024, condemned the manipulation of gift deed mutations and cautioned against dismissals based on procedural rather than substantive grounds.
In its other decision on March 12, 2025, the Lahore High Court maintained this line of reasoning while voiding an oral gift mutation with which a brother tried to settle scores with a sister for marrying out of love. The Court adjudged this abuse of social power as an Islamic misjudgment of balance.
Also, in Sadiqan Begum v. Muhammad Siddique (LHC, April 5, 2025), the Court emphasized again that oral gifts are not an act which bestows unqualified immunity from all rules of evidence, such as grant, acceptance, actual transfer, proof through witnesses, and cannot be used to avoid Islamic law of succession.
Again, on April 20, 2025, the women's session of the Lahore High Court addressed the oral gift mutation problem fraudulently and reiterated that such rights must not be assumed to be annulled by such fraudulent contrivances. The Peshawar High Court recognized the need for systemic change and established a special bench for women's succession cases on February 5, 2025. The initiative aimed to accelerate women's inheritance claims through NADRA-based identity verification, digitized case file tracking, and conflict resolution systems, which were particularly advantageous for women in rural areas.
Last, in Syeda Fouzia Jalaal Shah v. Customary Jirga Practices (Federal Shariat Court, March 20, 2025), the Court prohibited the 'Chaddar/Parchi' custom under Section 498A of the Pakistan Penal Code. The Court also stated that this custom practiced in some regions of Khyber Pakhtunkhwa is un-Islamic, illegal, and directed the State to prosecute those responsible. This judgment illustrated a monumental authoritative attempt to eliminate harmful practices which deprive women of their legal and religious rights to inheritance under the law and Islamic principles.

4.4 Role of State and Institutional Mechanisms

Several state institutions protect women's rights to inheritance. The National Commission on the Status of Women (NCSW) undertakes policy advocacy, monitors violations, and leads awareness campaigns (NCSW, 2021). Legal empowerment is provided through helplines and legal aid desks, as well as through public awareness programs, by the Ministry of Human Rights (2022). These departments extend to community education on inheritance laws, such as the Women's Centres in Punjab and Sindh, as well as the women's rights circuits. These efforts aim to raise awareness among law enforcement and judicial officers about gender biases in property disputes (UN Women, 2020). Despite the commendable work undertaken, these impacts are especially muted in remote areas that face cultural pushback (Zia, 2018).

4.5 Enforcement through Revenue and Land Record Authorities

Systematic and organized land recording systems well support the inheritance rights of women. The Punjab Government's PLRA System has automated systems for recording land titles and mutations, reducing access barriers for women and increasing women's access to records. Fraud attempts by females have been curtailed (Punjab Government, 2021). In contrast, much of Baluchistan and Khyber Pakhtunkhwa still rely on manual recording systems, where tampering is rampant (ADB, 2014). Along with the absence of standard land records, the lack of grievance mechanisms amplifies women's structural disadvantage.

4.6 Community-Based Support and Legal Aid

To fill the gaps caused by weak state structures, several NGOs have emerged to provide the necessary services. AGHS Legal Aid Cell, Aurat Foundation, and Legal Aid Society have provided free legal aid, legal literacy workshops, counseling, and mediation (Aurat Foundation, 2017; AGHS Legal Aid Cell, 2020). These services are critical where formal legal services are either unavailable or unwelcome. Sadly, limited reach, coupled with a lack of funding, constrains the long-term impact. While these services are critical, they nonetheless underscore the urgent need for publicly funded, gender-sensitive infrastructure for legal aid (UN Women, 2020).

5. Conclusion and Recommendations

5.1. Conclusion

This research has scrutinized the legal, religious, and sociocultural aspects of women's property and inheritance rights in Pakistan. The study illustrates a significant gap between the legal protections granted to women and the realization of those rights in practice. Under Islamic law, women are entitled to inherit specified shares. The Constitution of Pakistan upholds the principles of equality and non-discrimination, and there are statutory laws that punish the denial of inheritance rights. Despite these laws, such affirmative protections are ineffective because of deep-rooted structural and cultural constraints.

The absence of legal provisions is not the core issue; it is the sociocultural and bureaucratic phenomena that restrict the execution of such provisions. Coercive family dynamics, deeply rooted patriarchal customs, jirgas or informal dispute resolution assemblies, illiteracy, and lack of legal education create a web of obstacles barring women from claiming their due entitlements. While the constitutional framework is sound, and there is a growing pro-women bias in judicial reasoning, the justice system remains untimely, complicated, and expensive for many women.

It is heartening to note that the superior judiciary has taken a more forward-looking stance in recent years in inheritance cases, invalidating deceptive practices, undue controlled transfers, and customary refusals. The Enforcement of Women's Rights Act of 2020 has provided some avenues for relief. However, these reforms tend to be geographically restricted and lack institutional support. There is an immediate need for a focused, holistic systemic transformation that goes beyond enhancing legal frameworks and administrative mechanisms to include cultural change regarding the perception of women's property ownership as a harmful transgression. Achieving gender justice in inheritance issues is only possible through a coherent blend of Islamic principles, constitutional provisions, and sociocultural shifts.

5.2 Policy Recommendations

In light of the conclusions drawn, it is recommended that special consideration be given to factors that will aid in improving the enforcement and realization of women's inheritance rights in Pakistan.

5.2.1 Legal and Judicial Reforms

The disputes arising from inheritance must be addressed within a reasonable timeframe. Following the death of a property holder, the registration of inheritance partition should be compulsory and completed within a specified deadline. An immediate initiative must be launched to complete the electronic registration of land documents, enabling transparency and prompt access for female

inheritors. Civil and family courts need to be empowered to expedite inheritance petitions with a defined resolution timeline of six months. Further, gender-sensitive interpretation of inheritance and family laws should be taught to judges, lawyers, and prosecutors as part of ongoing professional development.

5.3.2 Administrative and Institutional Measures

Women should receive specialized outreach services at the district level. This entails the creation of Women's Property Rights Cells within the Ombudsman or Human Rights offices at the provincial level, staffed by trained officers who handle complaints. To assist women during the land transfer processes, Female Inheritance Officers need to be stationed at every Revenue Department. Land officials, patwaris, and others, who engage in malpractice, enabling the fraudulent dispossession of women's property, must face strict punitive action.

5.2.3 Public Awareness and Legal Literacy

It is essential to launch an effective nationwide campaign to educate women and communities about inheritance rights applicable to them under Islamic and Pakistani law. These initiatives must be delivered in local dialects and through various channels such as radio, television, mosques, and mobile applications. Islamic scholars should be brought in to explain the religion's position on women's inheritance, and gender equity, along with property rights, should be taught at the primary and madrassa levels.

5.2.4 Strengthening Role of Civil Society

The government is encouraged to collaborate with civil society organisations to distribute legal aid clinics in rural and underdeveloped areas. NGOs require funding for their documentation of success stories, provision of legal advice, and implementation of mobile awareness campaigns. Collaboration with the media is essential to transform public perceptions of women holding title to property, which is regarded as anti-family and disgraceful.

5.2.5 Reform in Customary and Informal Practices

The existing legal frameworks must be reformed to remove particular customary practices which infringe women's rights, including coerced oral relinquishment, Haqq Bakhshwana (marriage to the Qur'an), and Jirga-imposed settlements. Such practices should be legally prohibited, and any attempt to impose them should be punishable by law. Legal mechanisms should be established that empower women to contest these informal settlements. Judges should be vigilant in guarding against the invocation of culture or religion as a façade in these matters.

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